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Tusitala Productions, LLC, et al. v.

Geoffry Lee, et al.

Motion to Dismiss Based Upon Forum Non Conveniens and/or to

Quash Service of Summons for Lack of Personal Jurisdiction

BACKGROUND

Plaintiffs

Tusitala Productions, LLC and Talia Thompson ("Plaintiffs") allege Defendants "Geoffry" Lee and Will Bainbridge ("Defendants") exploited a production company for their own personal enrichment and diverted investor funds, seized unchecked authority, concealed material information, and used Tusitala's resources to finance a separate venture they controlled. (Compl., ¶ 1.) Plaintiffs allege that Defendants misappropriated company funds, jeopardized Tusitala's business certifications and industry relationships, and exposed the company to existential legal and reputational harm. (Ibid.) The individual parties are all residents of Utah, and Tusitala exists under the law of the state of Utah. (Id. at ¶¶ 2-5.)

On

December 31, 2025, Plaintiffs filed a Complaint alleging (1) breach of fiduciary duty; (2) breach of fiduciary duty; (3) receipt of stolen property; (4) embezzlement; and (5) conversion. On March 19, 2026, Defendants Geoffrey Lee (erroneously sued as Geoffry Lee) and Will Bainbridge ("Defendants") filed this Motion to Dismiss based upon the doctrine of forum non conveniens on the grounds that this action should be heard in Utah where all the parties reside, the underlying events occurred, and the interests of substantial justice

require.

OBJECTIONS

Defendants

submit 20 objections to the Declaration of Talia Thompson filed in support of Plaintiffs' opposition.

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Overruled:

1, 2, 3, 4, 12, 16, 18

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Sustained:

5 (lack of personal knowledge, speculation), 6 (hearsay, lack of foundation/personal knowledge), 7 (lack of personal knowledge/foundation), 8 (lack of personal knowledge), 9 (lack of personal knowledge/foundation), 10 (lack of personal knowledge/foundation), 11 (speculation), 13 (lack of personal knowledge), 14 (hearsay), 15 (speculation), 17 (lack of authentication, hearsay), 19 (lack of authentication), 20 (lack of authentication)

LEGAL STANDARD

Forum

non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise its jurisdiction when the court believes that the action may be more appropriately and justly tried elsewhere. (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751 (*Stangvik*).) Codified as Code of Civil Procedure section 410.30, the doctrine of forum non conveniens is firmly established in California. That statute states: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a suitable place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The defendant, as the moving party, bears the burden of proof on a motion based on forum non conveniens.

DISCUSSION

Alternative Forum

An

alternative forum is suitable if it has jurisdiction and the action in that forum will not be barred by the statute of limitations. It is sufficient that the action can be brought, even if not necessarily won, in the suitable alternative forum. That the law is less favorable to the plaintiffs in the alternative forum is irrelevant to the determination whether the forum is suitable unless the alternative forum provides no remedy at all. The “no remedy at all” exception applies only in “rare circumstances,” such as where the alternative forum is a foreign country whose courts are ruled by a dictatorship, so that there is no independent judiciary or due process of law. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 696-697.)

Defendants

argue that Utah has its own court system capable of fully exercising jurisdiction over its own residents in this matter, even if the dispute arises outside of Utah. Defendant also argues there are no statute of limitations issues involving any of Plaintiffs’ asserted claims, which all have statute of limitations of three years from the time of the alleged wrongful action. Plaintiff only alleges the relationship with Defendants began less than two years ago. Thus, Plaintiffs have more than a year to file their action in Utah.

Plaintiffs

do not oppose the motion on this issue. Defendants have met their burden by demonstrating that Utah is a suitable jurisdiction and the action will not be barred by the statute of limitations.

Private and Public Interests

Next,

the Court considers the litigants’ private interests and the public’s interest in retaining the action for trial in California. Private and public interests must be applied flexibly, without giving undue emphasis to any one element. (*Stangvik*, *supra*, 54 Cal.3d at p.753.)

i.

Private

Interests

The

private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. (Stangvik, supra, 54 Cal.3d at p.751.)

Defendants

demonstrate that the primary witnesses and parties are Utah residents.

Defendants list Plaintiff, Defendants, Jason Foster and Molly Mazzolini, husband/wife investors in Tusitala (reside in Salt Lake City Utah); Jodan Yospe, media attorney (resides in Park City, Utah); Michael Ori, producer and lender to Tusitala (resides in Salt Lake City, Utah); Chris Petrosie, director of photography for Tusitala (resides in Layton, Utah) as witnesses that reside in Utah. (Lee Decl., ¶ 11.) Defendants list only two potential witnesses who live in Orange County, California. (Ibid.) Defendants also demonstrate that it would be more expensive in terms of legal fees, travel, and lodgings to try the case in California. (Id. at ¶ 12; Bainbridge Decl., ¶ 10.)

Defendants contend it could cost two to three times as much in fees to defend themselves. (Lee Decl., ¶ 12; Bainbridge Decl., ¶ 10.) Defendants also contend litigation in California would pose a great hardship on their families. (Lee Decl., ¶ 12; Bainbridge Decl., ¶ 10.)

In

opposition, Plaintiffs identify a few witnesses for whom California is a more convenient forum and contend that Navigate is operational in California. (Thompson Decl. ¶ 11, 15-19.) Plaintiffs also claim that Plaintiffs' third-party California witnesses would be unavailable at trial for testimony absent voluntary attendance. However, the Court has sustained many objections to Plaintiffs' declaration as lacking foundation or personal knowledge.

Weighing

the evidence presented, the Court finds that the private interests weigh in favor of litigation in Utah. Defendants have demonstrated that many witnesses and the parties reside in Utah. Defendants have also demonstrated financial and personal hardships in litigating in California. In opposition, Plaintiffs have

shown that there could be difficulty in obtaining the trial testimony, but not depositions, of four potential witnesses in California.

ii.

Public

Interests

The

public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. (Stangvik, *supra*, 54 Cal.3d at p.751.)

Defendants

argue it makes no sense for California jurors to spend their service deciding a Utah-based dispute. Defendants argue that their sole purported nexus to California is that "Lee later diverted Tusitala investment funds to open Navigate as an operating business in Los Angeles". (See Compl., ¶ 17.) Defendants further argue that California has no interest in this dispute between Utah residents and that California's court system is more likely to be congested than in Utah. Moreover, every cause of action alleged also arises under Utah law. Defendants argue that Plaintiffs have no legitimate connection to California, as residents of Utah in a case where the alleged wrongful conduct occurred in Utah.

In

opposition, Plaintiffs argue California has a substantial interest in the dispute because limited discovery responses confirm that Defendants took trips to California, held Navigate-related meetings in California, and targeted California-based partners and investors. Also, Utah does not provide the same remedies for receipt of stolen property as California does. Moreover, jurors would have local concern for this dispute where there is a scheme that involves California, California-resident participants, California-targeted investor solicitations, and California-based activity.

Here,

the Court is not persuaded by Plaintiffs' argument that California has sufficient interest to deny the motion to dismiss where all parties and a

significant number of witnesses are residents of Utah. Plaintiffs have demonstrated that Defendants have had some contact with California and did some business in California. However, the fact that Defendants maintain business operations in the state does not automatically provide California with an interest in the dispute. (See *Appalachian Ins. Company v. Superior Court* (1984) 162 Cal.App.3d 427, 436.)

Nor

is the Court persuaded by the fact that some remedies for a cause of action may be unavailable to Plaintiffs in Utah. Plaintiffs have not shown that there is no remedy available in Utah for a similar cause of action. (See *Stangvik, supra*, 54 Cal.3d at p. 753 [the fact that alternative jurisdiction's law is less favorable should not be accorded weight in deciding a motion to dismiss or stay provided that some remedy is afforded])

Accordingly,

the Court finds that, considering an alternative forum, private, and public interests, the balance weighs in favor of dismissal.

CONCLUSION

The

court grants Defendants' motion to dismiss based on *forum non conveniens*.

The

Court need not analyze Defendants' argument in the alternative to quash service of summons.

Defendants

shall give notice.